



Notification Waiver Determination

L Catterton Europe - HYROX

Acquisition	GForce 137 GmbH (GForce), the acquisition vehicle of SL510 S.à.r.l., which is ultimately controlled by funds managed and advised by L Catterton Europe SAS, France (together with other affiliates, L Catterton), applied for a notification waiver in respect of its proposed acquisition of 100% of the ordinary shares of HYROX World GmbH (HYROX), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	21 July 2026

Parties to the Acquisition	The acquirer, L Catterton, is a consumer-focused private equity group, whose portfolio companies operate across all segments of the consumer industry, including in the retail, restaurant, food and beverage, and consumer service and product businesses. HYROX is a limited liability company incorporated and existing under the laws of Germany, which is engaged in the business of organising, licensing, and operating indoor fitness racing events under the HYROX brand in several countries, including Australia. None of L Catterton's portfolio companies are active in the same area of activity as HYROX in Australia, nor in an activity that is upstream or downstream of the organisation, licensing, and operation of indoor fitness racing events in Australia.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application, and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular, there is no horizontal overlap between the operations of the parties or their connected entities in Australia. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified.

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	The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**